

STATE OF NEW YORK

10080--B

Cal. No. 326

IN ASSEMBLY

January 30, 2026

Introduced by M. of A. WIEDER, P. CARROLL, BEEPHAN, WILLIAMS, EACHUS, BRABENEC, KAY -- read once and referred to the Committee on Governmental Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported from committee, advanced to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the public officers law, in relation to expanding geographical boundaries for residency requirements of correction officers employed by the counties of Rockland and Orange

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 3 of the public officers law is amended by adding a
2 new subdivision 2-e to read as follows:

3 2-e. Neither the provisions of this section, nor of any general,
4 special or local law, charter, code, ordinance, resolution, rule or
5 regulation, requiring a person to be a resident of the political subdivi-
6 vision or municipal corporation of the state for which such person's
7 official functions are required to be exercised, shall apply to the
8 appointment of a person as a correction recruit, correction officer,
9 correction corporal, correction sergeant, correction lieutenant,
10 correction captain, correction colonel, chief of corrections, assistant
11 warden, or warden by a sheriff's department or local correctional facil-
12 ity of any political subdivision or municipal corporation in the coun-
13 ties of Rockland and Orange if such person resides: (a) in the counties
14 of Rockland and Orange; or (b) in a county within the state contiguous
15 to the counties of Rockland and Orange.

16 § 2. Section 30 of the public officers law is amended by adding a new
17 subdivision 9 to read as follows:

18 9. Neither the provisions of this section, nor any general, special or
19 local law, charter, code, ordinance, resolution, rule or regulation,
20 creating a vacancy in a local office of a political subdivision or
21 municipal corporation of the state if the incumbent thereof ceases to be
22 a resident of the state or such political subdivision or municipal
23 corporation, shall apply in the case of a person holding the office of

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 correction recruit, correction officer, correction corporal, correction
2 sergeant, correction lieutenant, correction captain, correction colonel,
3 chief of corrections, assistant warden, or warden employed by a sher-
4 iff's department or local correctional facility of any political subdi-
5 vision or municipal corporation in the counties of Rockland and Orange
6 as of April fourth, two thousand twenty-six, provided such person
7 resides within forty-five miles of the counties of Rockland and Orange,
8 measured from the nearest boundary line of such counties.

9 § 3. This act shall take effect immediately.